

# COURT OF COMMON PLEAS OF PHILADELPHIA COUNTY

## DOCKET



Docket Number: CP-51-CR-0007268-2025

## CRIMINAL DOCKET

Court Case

Commonwealth of Pennsylvania

v.

Malik Erwin

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### CASE INFORMATION

|                                                      |                                             |                                                     |
|------------------------------------------------------|---------------------------------------------|-----------------------------------------------------|
| <u>Judge Assigned:</u>                               | <u>Date Filed:</u> 11/03/2025               | <u>Initiation Date:</u> 11/03/2025                  |
| <u>OTN:</u> U 289576-0                               | <u>LOTN:</u>                                | <u>Originating Docket No:</u> MC-51-CR-0018619-2023 |
| <u>Initial Issuing Authority:</u> Marsha H. Neifield | <u>Final Issuing Authority:</u>             |                                                     |
| <u>Arresting Agency:</u> Philadelphia Pd             | <u>Arresting Officer:</u> Wallace, Franklin |                                                     |
| <u>Complaint/Citation No.:</u> 2315078811-0018619    | <u>Incident Number:</u> 2315078811          |                                                     |
| <u>County:</u> Philadelphia                          | <u>Township:</u> Philadelphia City          |                                                     |
| <u>Case Local Number Type(s)</u>                     | <u>Case Local Number(s)</u>                 |                                                     |
| Originating Docket Number                            | MC-51-CR-0018620-2023                       |                                                     |
| Originating Document Number                          | 2315078811-0018620                          |                                                     |
| Originating Docket Number                            | MC-51-CR-0018619-2023                       |                                                     |
| District Control Number                              | 2315078811                                  |                                                     |
| Originating Document Number                          | 2315078811-0018619                          |                                                     |

### STATUS INFORMATION

|                            |                                |                                                          |                                |
|----------------------------|--------------------------------|----------------------------------------------------------|--------------------------------|
| <u>Case Status:</u> Active | <u>Status Date:</u> 11/03/2025 | <u>Processing Status:</u> Awaiting Filing of Information | <u>Arrest Date:</u> 10/15/2023 |
|----------------------------|--------------------------------|----------------------------------------------------------|--------------------------------|

### CALENDAR EVENTS

| <u>Case Calendar</u>         | <u>Schedule</u>   | <u>Start</u> | <u>Room</u> | <u>Judge Name</u>                   | <u>Schedule</u> |
|------------------------------|-------------------|--------------|-------------|-------------------------------------|-----------------|
| <u>Event Type</u>            | <u>Start Date</u> | <u>Time</u>  |             |                                     | <u>Status</u>   |
| Formal Arraignment           | 11/14/2025        | 11:00 am     | 1104        | Trial Commissioner Cynthia S. Gregg | Scheduled       |
| MHC-Competency Determination | 12/04/2025        | 9:00 am      | 902         | Judge Donna Woelpper                | Scheduled       |
| MHC-Neg Plea                 | 01/15/2026        | 9:00 am      | 902         | Judge Donna Woelpper                | Continued       |
| MHC-Neg Plea                 | 02/05/2026        | 9:00 am      | 902         | Judge Donna Woelpper                | Continued       |
| MHC-Neg Plea                 | 04/02/2026        | 9:00 am      | 902         | Judge Donna Woelpper                | Continued       |
| MHC-Neg Plea                 | 05/07/2026        | 9:00 am      | 902         | Judge Donna Woelpper                | Continued       |
| MHC-Neg Plea                 | 06/04/2026        | 9:00 am      | 902         | Judge Donna Woelpper                | Scheduled       |

### CONFINEMENT INFORMATION

| <u>Confinement</u> | <u>Confinement</u>           | <u>Destination</u>              | <u>Confinement</u> | <u>Still in</u> |
|--------------------|------------------------------|---------------------------------|--------------------|-----------------|
| <u>Known As Of</u> | <u>Type</u>                  | <u>Location</u>                 | <u>Reason</u>      | <u>Custody</u>  |
| 09/18/2025         | County Correctional Facility | Riverside Correctional Facility |                    | Yes             |

### DEFENDANT INFORMATION

|                       |            |                        |                        |
|-----------------------|------------|------------------------|------------------------|
| <u>Date Of Birth:</u> | 03/29/1995 | <u>City/State/Zip:</u> | Philadelphia, PA 19124 |
|-----------------------|------------|------------------------|------------------------|

### CASE PARTICIPANTS

|                         |              |
|-------------------------|--------------|
| <u>Participant Type</u> | <u>Name</u>  |
| Defendant               | Erwin, Malik |

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### BAIL INFORMATION

Erwin, Malik

Nebbia Status: None

| <u>Bail Action</u> | <u>Date</u> | <u>Bail Type</u> | <u>Originating Court</u> | <u>Percentage</u> | <u>Amount</u> |
|--------------------|-------------|------------------|--------------------------|-------------------|---------------|
| Set                | 11/03/2025  | Monetary         | Common Pleas             | 10.00%            | \$500,000.00  |

### CHARGES

| <u>Seq.</u> | <u>Orig Seq.</u> | <u>Grade</u> | <u>Statute</u> | <u>Statute Description</u>                                                            | <u>Offense Dt.</u> | <u>OTN</u> |
|-------------|------------------|--------------|----------------|---------------------------------------------------------------------------------------|--------------------|------------|
| 1           | 1                |              | 18 § 2702      | Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference | 10/14/2023         | U 289576-0 |
| 2           | 2                |              | 18 § 2701      | Simple Assault                                                                        | 10/14/2023         | U 289576-0 |
| 3           | 3                |              | 18 § 2705      | Recklessly Endangering Another Person                                                 | 10/14/2023         | U 289576-0 |
| 4           | 1                |              | 18 § 3301      | Arson-Danger Of Death Or Bodily Inj                                                   | 10/14/2023         | U 289576-0 |
| 5           | 2                |              | 18 § 3302      | Causing Catastrophe                                                                   | 10/14/2023         | U 289576-0 |
| 6           | 3                |              | 18 § 3304      | Criminal Mischief                                                                     | 10/14/2023         | U 289576-0 |
| 7           | 4                |              | 18 § 907       | Poss Instrument Of Crime W/Int                                                        | 10/14/2023         | U 289576-0 |
| 8           | 5                |              | 18 § 2705      | Recklessly Endangering Another Person                                                 | 10/14/2023         | U 289576-0 |

### DISPOSITION SENTENCING/PENALTIES

#### Disposition

| <u>Case Event</u>                      | <u>Disposition Date</u>                  | <u>Final Disposition</u>      |
|----------------------------------------|------------------------------------------|-------------------------------|
| <u>Sequence/Description</u>            | <u>Offense Disposition</u>               | <u>Grade</u> <u>Section</u>   |
| <u>Sentencing Judge</u>                | <u>Sentence Date</u>                     | <u>Credit For Time Served</u> |
| <u>Sentence/Diversion Program Type</u> | <u>Incarceration/Diversionary Period</u> | <u>Start Date</u>             |
| <u>Sentence Conditions</u>             |                                          |                               |

#### Lower Court Proceeding (generic)

|                                                                                           |                |           |
|-------------------------------------------------------------------------------------------|----------------|-----------|
| Preliminary Hearing                                                                       | 10/31/2025     | Not Final |
| 1 / Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference | Held for Court | 18 § 2702 |
| 2 / Simple Assault                                                                        | Held for Court | 18 § 2701 |
| 3 / Recklessly Endangering Another Person                                                 | Held for Court | 18 § 2705 |
| 4 / Arson-Danger Of Death Or Bodily Inj                                                   | Held for Court | 18 § 3301 |
| 5 / Causing Catastrophe                                                                   | Held for Court | 18 § 3302 |
| 6 / Criminal Mischief                                                                     | Held for Court | 18 § 3304 |
| 7 / Poss Instrument Of Crime W/Int                                                        | Held for Court | 18 § 907  |
| 8 / Recklessly Endangering Another Person                                                 | Held for Court | 18 § 2705 |

#### Proceed to Court

Defendant Was Not Present

|                                                                                           |                  |           |
|-------------------------------------------------------------------------------------------|------------------|-----------|
| Information Filed                                                                         | 05/08/2026       | Not Final |
| 1 / Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference | Proceed to Court | 18 § 2702 |
| 2 / Simple Assault                                                                        | Proceed to Court | 18 § 2701 |
| 3 / Recklessly Endangering Another Person                                                 | Proceed to Court | 18 § 2705 |

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### Disposition

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|-------------------------------------------|------------------------------------------|-------------------------------|
| <u>Sequence/Description</u>               | <u>Offense Disposition</u>               | <u>Grade</u> <u>Section</u>   |
| <u>Sentencing Judge</u>                   | <u>Sentence Date</u>                     | <u>Credit For Time Served</u> |
| <u>Sentence/Diversion Program Type</u>    | <u>Incarceration/Diversionary Period</u> | <u>Start Date</u>             |
| <u>Sentence Conditions</u>                |                                          |                               |
| 4 / Arson-Danger Of Death Or Bodily Inj   | Proceed to Court                         | 18 § 3301                     |
| 5 / Causing Catastrophe                   | Proceed to Court                         | 18 § 3302                     |
| 6 / Criminal Mischief                     | Proceed to Court                         | 18 § 3304                     |
| 7 / Poss Instrument Of Crime W/Int        | Proceed to Court                         | 18 § 907                      |
| 8 / Recklessly Endangering Another Person | Proceed to Court                         | 18 § 2705                     |

## COMMONWEALTH INFORMATION

Name: Philadelphia County District Attorney's  
Office  
District Attorney

Supreme Court No:

Phone Number(s):  
215-686-8000 (Phone)

Address:  
3 South Penn Square  
Philadelphia, PA 19107

## ATTORNEY INFORMATION

Name: Shaka Mzee Johnson  
Private

Supreme Court No: 210082

Rep. Status: Active

Phone Number(s):  
215-732-7900 (Phone)  
888-285-2104 (Fax)  
215-285-4330 (Office)

Address:  
1333 Christian St  
Philadelphia, PA 19147

Representing: Erwin, Malik

## ENTRIES

| <u>Sequence Number</u>             | <u>CP Filed Date</u> | <u>Document Date</u> | <u>Filed By</u>                                |
|------------------------------------|----------------------|----------------------|------------------------------------------------|
| 1                                  | 11/03/2025           |                      | Court of Common Pleas -<br>Philadelphia County |
| Held for Court                     |                      |                      |                                                |
| 3                                  | 11/03/2025           |                      | Neifield, Marsha H.                            |
| Bail Set - Erwin, Malik            |                      |                      |                                                |
| 2                                  | 11/14/2025           |                      | Court of Common Pleas -<br>Philadelphia County |
| Hearing Notice                     |                      |                      |                                                |
| 3                                  | 11/14/2025           |                      | Gregg, Cynthia S.                              |
| Defendant Failed to Retain Counsel |                      |                      |                                                |

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| <u>Sequence Number</u>                                | <u>CP Filed Date</u> | <u>Document Date</u> | <u>Filed By</u>                                                   |
|-------------------------------------------------------|----------------------|----------------------|-------------------------------------------------------------------|
| 1                                                     | 11/17/2025           |                      | Gessner, Scott                                                    |
| Entry of Appearance                                   |                      |                      |                                                                   |
| 2                                                     | 11/17/2025           |                      | Court of Common Pleas -<br>Philadelphia County                    |
| Appointment Notice                                    |                      |                      |                                                                   |
| 2                                                     | 12/04/2025           |                      | Court of Common Pleas -<br>Philadelphia County                    |
| Hearing Notice                                        |                      |                      |                                                                   |
| 3                                                     | 12/04/2025           |                      | Woelpper, Donna                                                   |
| Status Listing                                        |                      |                      |                                                                   |
| 1                                                     | 01/15/2026           |                      | Johnson, Shaka Mzee                                               |
| Entry of Appearance                                   |                      |                      |                                                                   |
| 4                                                     | 01/15/2026           |                      | Court of Common Pleas -<br>Philadelphia County                    |
| Hearing Notice                                        |                      |                      |                                                                   |
| 5                                                     | 01/15/2026           |                      | Woelpper, Donna                                                   |
| Status Listing                                        |                      |                      |                                                                   |
| 6                                                     | 01/15/2026           |                      | Court of Common Pleas -<br>Philadelphia County<br>Woelpper, Donna |
| Short Certificate<br>Court Appointments<br>01/15/2026 |                      |                      |                                                                   |
| 1                                                     | 02/05/2026           |                      | Woelpper, Donna                                                   |
| Defendant Committed 305 Via 405                       |                      |                      |                                                                   |
| 4                                                     | 02/05/2026           |                      | Court of Common Pleas -<br>Philadelphia County                    |
| Hearing Notice                                        |                      |                      |                                                                   |
| 1                                                     | 03/03/2026           |                      | Court Appointment QAU                                             |
| Order Granting Motion for Counsel Fees                |                      |                      |                                                                   |

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|-------------------------------------------------------|----------------------|----------------------|------------------------------------------------|
| 1                                                     | 03/18/2026           |                      | Court Appointment QAU                          |
| Resubmission - Order Granting Motion for Counsel Fees |                      |                      |                                                |
| 3                                                     | 04/02/2026           |                      | Court of Common Pleas -<br>Philadelphia County |
| Hearing Notice                                        |                      |                      |                                                |
| 4                                                     | 04/02/2026           |                      | Woelpper, Donna                                |
| Status Listing                                        |                      |                      |                                                |
| 1                                                     | 04/15/2026           |                      | Court Appointment QAU                          |
| Order Granting Motion for Counsel Fees                |                      |                      |                                                |
| 1                                                     | 04/30/2026           |                      | Court Appointment QAU                          |
| Order Granting Motion for Counsel Fees                |                      |                      |                                                |
| 3                                                     | 05/07/2026           |                      | Court of Common Pleas -<br>Philadelphia County |
| Hearing Notice                                        |                      |                      |                                                |
| 4                                                     | 05/07/2026           |                      | Woelpper, Donna                                |
| Status Listing                                        |                      |                      |                                                |
| 1                                                     | 05/08/2026           |                      | Krasner, Larry                                 |
| Information Filed                                     |                      |                      |                                                |